Roman Crime Final Exam Study Guide

Classics 2301

Crime and Punishment in Ancient Greece and Rome

How to Use This Packet

Read the core themes and timeline first, then spend most of your time on Weeks 10–12. Use the earlier weeks to define terms, anchor chronology, and build comparisons. Treat the reading passages as exam evidence, not just illustrations.

Prepared from lecture scripts, slide extracts, study questions, and assigned readings in the local course archive.

April 8, 2026

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Fast Exam Priorities

Highest priority: Week 10 Roman law institutions, Week 11 Catiline chronology and the `SCU`, and Week 12 `Pro Caelio`, `vis`, and Cicero's character-based strategy.
Second priority: Week 7 Draco and `Lysias 1`, Week 8 `Gorgias`, and Week 6 criminology models.
Foundation priority: Weeks 1–4 for chronology, public/private distinctions, tragedy, and Greek legal vocabulary.

Overview

This guide is built from the course materials in this folder: lecture scripts, slide decks, study-question files, the assigned PDFs for `Lysias 1` and `In Defense of Marcus Caelius`, and the existing local study-note `.tex/.pdf` files. The lecture scripts are treated as the main teaching source. The exam is cumulative, but the course materials make clear that Weeks 10-12 deserve the heaviest emphasis.

1 How to use this guide

1. Read the "Core Themes" and "Master Timeline" sections first.
2. Study Weeks 10-12 in detail.
3. Use Weeks 1-4 and 6-8 to make comparisons, define terms, and answer cumulative questions.
4. For reading weeks, memorize both the argument of the text and the professor's interpretation of why the passage matters.
5. Use the study-question answers at the end of each week to self-test.

2 Core Themes You Should See Everywhere

1. Crime is not the same thing in antiquity and modernity

- Modern systems sharply separate criminal law and civil law, rely on police and public prosecutors, and use imprisonment as a central punishment.
- Ancient Athens and Rome distinguished public and private matters, but the line was much narrower and much stranger. Many things modern people call crimes were handled as private wrongs.
- In classical Athens, homicide was not a public crime in the modern sense. In Rome, many violent acts remained outside a strong state criminal apparatus for a very long time.

2. Self-help matters

- Ancient societies expected households, kin groups, patrons, and private citizens to respond to wrongs.
- Law often regulated self-help rather than replacing it.

- Greek homicide law and Roman patron-client practice both show that the state did not monopolize force in the modern way.

3. Rhetoric shapes criminality

- Ancient law-court speeches do not just prove facts. They construct identities.
- Lysias turns Euphiletos into a modest victim and Eratosthenes into a corrupt seducer.
- Cicero turns Caelius into a charming young hero and Clodia into a scandalous villain.
- Sallust frames Catiline in contradictory ways: criminal, aristocrat, revolutionary, enemy, and heroic commander.

4. Crime is often treated as a matter of character, not just action

- Modern positivist criminology looks for causes of criminality in biology, environment, and psychology.
- Ancient texts often do something similar: they explain crime through ancestry, upbringing, moral weakness, gender, class position, and desire.
- This matters especially in Weeks 11 and 12.

5. Insider versus outsider is a recurring structure

- Criminals are cast as threats to the community.
- Punishment often removes them from the community: exile in antiquity, imprisonment in modernity.
- But the dangerous figure in this course is often an insider: a citizen, aristocrat, householder, wife, husband, politician, or general.

6. State violence develops over time

- In both Greece and Rome, early law coexists with private retaliation.
- Over time, institutions become more formal.
- In Rome especially, the state gradually centralizes legitimate violence, and the law on `vis` becomes a key turning point in that story.

3 Master Timeline

Greek timeline

- c. 6500-3000 BCE: Neolithic Greece
- c. 3000-1100 BCE: Bronze Age
- c. 1100-750 BCE: Greek Dark Age
- c. 750-480 BCE: Archaic Period

- c. 594 BCE: Solon's reforms
- c. 508 BCE: Cleisthenic reforms at Athens
- 499-479 BCE: Persian Wars
- 480-323 BCE: Classical Period
- 431-404 BCE: Peloponnesian War
- 469-399 BCE: Socrates
- 458 BCE: Aeschylus' `Oresteia`
- 429-347 BCE: Plato
- 323-30 BCE: Hellenistic Period

Roman timeline

- 753 BCE: Traditional foundation of Rome
- 509 BCE: End of monarchy, start of Republic
- early 5th century BCE: Plebeian secession and Struggle of the Orders
- 450 BCE: Twelve Tables
- 367 BCE: Praetorship created; consular hierarchy clarified
- 287 BCE: `lex Hortensia` makes plebiscites binding on all Rome
- 149 BCE: `lex Calpurnia` creates first `quaestio perpetua`
- 82-81 BCE: Sulla's dictatorship and expansion of permanent criminal courts
- 81 BCE: `lex Cornelia de sicariis et veneficis`
- 63 BCE: Catilinarian conspiracy
- 58 BCE: Clodius' law targets executions without trial; Cicero goes into exile
- 56 BCE: Trial of Caelius, Cicero delivers `Pro Caelio`
- 27 BCE: Augustan settlement
- 426 CE: Law of Citations
- 439 CE: `Codex Theodosianus`
- 528-534 CE: Justinian's codification, `Corpus Iuris Civilis`

4 Week 1: Introduction to Crime and Punishment in Ancient Greece and Rome

What Week 1 is really doing

Week 1 is not just an introduction. It sets the method of the course. The main claim is that modern categories like "crime," "criminal justice," "punishment," "democracy," and even "prison" do

not map neatly onto ancient Greece and Rome.

Key examples and why they matter

- Ned Stark executing a deserter: judgment and punishment are not separated.
- Salem witch trials: formal procedure can still be unjust.
- Omar Khadr: one event can generate both criminal and civil consequences.
- Mike Duffy: public scandal, criminal process, and civil litigation can all diverge.

Ancient case study: Publius Claudius Pulcher and the sacred chickens

- Date: 249 BCE, First Punic War.
- Claudius ignored bad bird omens before attacking at Drepana.
- He mocked the sacred chickens, attacked anyway, lost badly, and was prosecuted.
- The case mixes religion, war, politics, procedure, and punishment.
- It shows that what counts as a punishable public wrong in Rome includes religious failure, not just modern-style criminal conduct.

Major concepts

- Public case versus private case
- Criminal law versus civil law
- Self-help
- Exile versus imprisonment
- Parricide and the `culleus`
- Foucault and historical discontinuity

High-yield takeaways

Key Takeaway

- Ancient Athens and Rome did distinguish public from private matters, but the categories were narrower than in modern law.
- Homicide in Athens was not prosecuted the way a modern state prosecutes murder.
- Ancient prisons were generally temporary holding places, not long-term correctional institutions.
- Exile is one of the most important ancient punishments.

Study questions answered

1. What comes to mind when you think about crime and criminals? The course wants you to realize that modern answers are shaped by media, police, courts, and prisons, not by universal

truths.

2. Where do we get information about crimes and criminals? Mostly through popular culture, news, legal drama, social media, and highly mediated public stories.
3. How are modern and ancient justice systems similar? Both distinguish serious public wrongs from private disputes, use formal procedures, and try to protect the community.
4. How are they different? Ancient systems rely much more on kinship, self-help, exile, status, and weak state enforcement.

5 Week 2: Historical Background and Context

Why this week matters

Week 2 gives you the chronological map required for the whole course. If you cannot place authors, legal reforms, and political systems in the right order, later weeks become confusing.

Greek periods you should know

- Neolithic
- Bronze Age
- Dark Age
- Archaic
- Classical
- Hellenistic

Roman periods you should know

- Regal Period
- Republican Period
- Imperial Period
- Later Roman Empire

High-yield anchors

Key Takeaway

- Draco and Solon are Archaic, before tragedy and before Plato.
- Aeschylus belongs to the early Classical period.
- Socrates and Plato belong to the later Classical period.
- The Roman law material in Weeks 10-12 belongs mainly to the Republic and early Empire, but codification reaches late antiquity.

Study questions answered

1. What are the major systems of dating chronology for antiquity? BCE/CE dating plus period labels like Archaic, Classical, Hellenistic, Regal, Republic, and Empire.
2. What are the major periods of Greek history? Neolithic, Bronze Age, Dark Age, Archaic, Classical, Hellenistic.
3. What are the major periods of Roman history? Regal, Republic, Empire, later empire.
4. When did Greek culture emerge in the Mediterranean? In the Bronze Age and especially again after the Dark Age with polis formation and colonization.
5. How did Greek culture develop politically? From small communities and aristocratic structures toward poleis, tyrannies, reforms, and in some places democracy.
6. Which wars shaped Greek and Roman history? Persian Wars, Peloponnesian War, Punic Wars, Roman civil wars.
7. What is meant by "Hellenistic"? The post-Alexander Greek world, after 323 BCE.
8. When did Romans control the Mediterranean? Gradually through the middle and late Republic, especially after the Punic Wars.
9. What connections can you draw between Greek and Roman culture? Roman culture borrows heavily from Greek culture, but Roman legal and political development remains distinct.

6 Week 3: Introduction to Greek Law

What this lecture teaches

Week 3 gives the vocabulary and institutional structure for Greek law, especially Athenian law. It is one of the densest lectures in the course.

Core Greek legal ideas

- Earliest Greek dispute resolution often involves arbitration, compensation, and vengeance.
- Written law becomes important in the Archaic period.
- Law emerges alongside political reform.

Key terms

- `nomos`: law, custom, convention
- `thesmos`: law laid down
- `dike`: often private suit or justice
- `graphe`: public prosecution
- `Heliaia`: people's court system
- archons

- Areopagus
- boule
- assembly
- juries
- lethal self-help

Draco and Solon

- Draco is associated especially with homicide law.
- Solon is associated with broader reform and with appeal rights.
- The important point is not "Draco always imposed death," but that Athenian law formalized when force and homicide were legally permitted or forbidden.

Private versus public cases

- Private cases are brought by the injured party or family.
- Public cases are brought in the name of the community.
- This distinction is crucial for understanding why homicide can be legally important without being a public crime in the modern sense.

Typical Athenian jury trial

- No professional judge in the modern sense.
- Large citizen juries.
- Timed speeches.
- No lawyers speaking for you in the modern sense; litigants speak, though they may use speech-writers like Lysias.
- Heavy dependence on rhetoric.

Study questions answered

1. What are the major terms for Greek laws? `nomos`, `thesmos`, `dike`, and `graphe` are among the most important distinctions.
2. What is meant by lethal self-help? Legally permitted private violence used to defend household order or respond to certain wrongs.
3. What are the main sources for Greek law in the pre-Classical period? Epic, inscriptions, later historians, and surviving statutes cited in speeches.
4. What are the main features of Greek law in the Archaic period? Increasing written law, lawgivers, kin-based retaliation still present, and formal limits on violence.
5. Who are the major reformers at Athens? Draco, Solon, and later Cleisthenes in political organization.

6. What are the main organizations of the Athenian system? Archons, Areopagus, boule, assembly, juries.
7. What is the procedural difference between private and public cases? Who brings the case, whose interest is represented, and sometimes how the case is framed.
8. How does a typical Greek jury trial proceed? Complaint, pretrial stages, speeches, witnesses, jury vote, and sometimes a separate penalty phase.

7 Week 4: Greek Tragedy of Crime - Aeschylus' Oresteia

The Five Things

- Author: Aeschylus
- Title: `Oresteia`
- Date: 458 BCE
- Location: Athens
- Language: Greek

What the trilogy is about

The `Oresteia` tracks a chain of violence inside the house of Atreus.

- Agamemnon sacrifices Iphigenia.
- Clytemnestra kills Agamemnon.
- Orestes kills Clytemnestra to avenge Agamemnon.
- The Furies pursue Orestes.
- Athena creates a court and transforms vengeance into civic adjudication.

Why the trilogy matters for the course

- It dramatizes a world before stable civic justice.
- It presents violent revenge as both necessary and destructive.
- It shows the transition from blood vengeance to courtroom justice.
- It treats crime as moral, familial, civic, and divine at the same time.

Major themes

- Hospitality
- Kinship violence
- Gender inversion and anxiety
- Divine justice versus human justice

- Pollution
- Founding of the court

High-yield interpretation

Key Takeaway

The trilogy does not simply say "law replaces revenge." It stages a compromise.

- older forces of vengeance are not destroyed;
- they are incorporated into civic order as the Eumenides;
- justice becomes institutional, but only by accommodating older claims.

Study questions answered

1. How does the backstory set up revenge? The house of Atreus is already trapped in inherited violence before the trilogy begins.
2. How does Aeschylus describe life before a justice system? As a world where blood must answer blood and no stable neutral authority resolves conflict.
3. Does Clytemnestra fit expected gender norms? No. She is repeatedly coded as masculine, authoritative, strategic, and politically dangerous.
4. What role does hospitality play? Violations of household trust and guest relationships deepen the moral horror of the crimes.
5. Human versus divine justice? Human judgments are limited and political; divine claims are older, broader, and harder to escape.
6. How does Orestes resolve the conflict? He does not resolve it privately. The case is transferred into a court.
7. How does the trilogy reflect court development? Athena's institution of trial mirrors the move toward civic adjudication.
8. What role do divinities play? They embody competing justice systems.
9. Do punishments fit crimes? Not neatly; each punishment generates further guilt.
10. What do the Eumenides preserve? Order, fear, and the older logic of vengeance, now folded into civic life.

8 Week 5

There is no lecture-content week in this local course folder. The cumulative guide therefore moves from Week 4 to Week 6.

9 Week 6: Modern Criminology and Ancient Crime

Why this week matters

Week 6 gives the theoretical toolkit the professor uses to read the ancient materials. You should know the theory names, but more importantly you should know how they are applied in later weeks.

Five approaches to defining crime

- Legal: crime is law-breaking.
- Moral: crime is what is wrong.
- Social: crime is norm violation.
- Humanistic: crime is violation of fundamental human rights.
- Social constructionist: societies construct both crime and criminality.

Positivism

- Biological positivism: Lombroso and the search for physical criminal types.
- Sociological positivism: environment, neighborhood, and measurable social forces.
- Psychological positivism: mental and internal causal models.

Walklate's four explanation models

- Rational Choice Theory
- Social Control Theory
- Relative Deprivation Theory
- Hegemonic Masculinity

Otherness

- Criminological other: a person who does not fit the expected image of a criminal.
- Victimological other: a person who does not fit the expected image of a victim.

High-yield takeaways

Key Takeaway

- Ancient texts can look strikingly modern when they explain criminality through personality, desire, class frustration, or social environment.
- The course repeatedly asks whether ancient writers focus on the act or on the person.

Study questions answered

1. How is criminology defined? As a flexible field studying crime, criminality, punishment, victims, and social responses.

2. What are the approaches to defining crime? Legal, moral, social, humanistic, social constructionist.
3. How did criminology develop? Through changing emphasis from law and punishment to scientific, social, and cultural explanation.
4. What is positivism? The search for empirical causes of criminal behavior.
5. What are the three positivist strands? Biological, sociological, psychological.
6. What are Walklate's four models? Rational choice, social control, relative deprivation, hegemonic masculinity.
7. What are the criminological and victimological others? People who do not fit expected public stereotypes of offender or victim.

10 Week 7: Athens and Draco's Homicide Law / Lysias 1

The Five Things

- Author: Lysias
- Title: `On the Murder of Eratosthenes` (`Lysias 1`)
- Date: probably after 403 BCE, before Lysias' death
- Location: Athens
- Language: Greek

Who is who

- Author: Lysias
- Speaker in court: Euphiletos
- Defendant: Euphiletos
- Dead man: Eratosthenes

Why this case matters

This week shows how Athenian homicide law works in practice and how rhetoric bends law. Euphiletos must show that the killing was legal, not premeditated murder.

The key legal issue

The defense relies on the exception in Draco's homicide law for killing a seducer caught in the act. The most important exam point is this.

- the law creates an exception to homicide liability;
- it does not simply say "adultery is punishable by death."

Why "seducer" matters

The lecture stresses that seduction is treated as worse than rape because seduction threatens.

- household authority,
- legitimacy of children,
- inheritance,
- the integrity of the household.

Euphiletos' strategy

- portray himself as ordinary, modest, gullible, and law-abiding;
- portray Eratosthenes as a serial corrupter of households;
- claim the killing was lawful revenge, not murder;
- imply he acted as the law commanded, even though the law is more limited than that.

Direct passages from the reading

From `Lysias 1.pdf`, section 4.

> *"I believe, gentlemen, that what I have to demonstrate is this: that Eratosthenes seduced my wife and corrupted her … and that I did not commit this deed for money … except revenge, as the law allows."*

Why it matters.

- This is the entire defense theory in miniature.
- Euphiletos reframes the case from homicide to justified household revenge.
- The phrase "as the law allows" is doing major rhetorical work.

From `Lysias 1.pdf`, section 21.

> *"Make sure, then, no one else finds out about this; otherwise, our agreement will be worth nothing. I expect you to show me them in the act. For I do not need words, but clear evidence…"*

Why it matters.

- Euphiletos tries to prove that he waited for lawful, direct confirmation.
- It supports his claim that he was not acting out of long-term personal hatred.
- It also reveals calculated preparation, which is exactly why the speech needs to manage the line between plan and lawful response.

From `Lysias 1.pdf`, opening.

> *"If you employed the same standards for others as you do for your own behaviour, there is not a single one of you who would not be furious..."*

Why it matters.

- Euphiletos invites the jury to identify with him personally.
- The case is not presented as technical law alone, but as shared masculine household experience.

Study questions answered

1. What are the Five Things? See above.
2. Who is on trial and who is dead? Euphiletos is on trial for killing Eratosthenes.
3. Who speaks and who wrote the speech? Euphiletos speaks; Lysias wrote it.
4. What matters in Draco's law? The homicide exception for killing a seducer caught in the act.
5. What are the main defense arguments? Eratosthenes seduced the wife, the killing was lawful, there was no prior enmity, and Euphiletos acted with witnesses.
6. How do these fit adultery procedure? The speech exaggerates the law's support for killing and makes lawful response sound mandatory.
7. Why might the defense succeed? Because it aligns with Athenian anxieties about household control and jury identification.
8. How does this connect to Week 6? The speech constructs criminality through character, household role, and social norm rather than bare legal definition.
9. Is the approach similar to modern court practice? In one sense yes, because narrative and character matter; in another no, because the whole legal framework is radically different.

11 Week 8: Greek Philosophy of Crime - Plato's Gorgias

The Five Things

- Author: Plato
- Title: `Gorgias`
- Date: fourth century BCE, set in the late fifth century
- Location: Athens
- Language: Greek

Main figures

- Socrates
- Gorgias
- Polus

- Callicles

Why rhetoric matters

Rhetoric is the art of persuasion. In Athens, persuasive speech could shape assemblies and trials. The dialogue asks whether persuasion without truth is power, corruption, or both.

Socrates versus Polus

Polus argues that a successful criminal can be happy if he avoids punishment.

Socrates argues.

- wrongdoing makes the soul worse;
- escaping punishment is worse than being punished;
- punishment is a kind of cure.

This is one of the clearest ancient arguments for rehabilitation over simple deterrence.

Socrates versus Callicles

Callicles argues.

- `physis` (nature) and `nomos` (convention/law) are opposed;
- the strong should dominate the weak;
- justice is a tool invented by the weak majority;
- self-indulgence is natural.

Socrates argues.

- justice and self-discipline are real goods;
- unrestrained desire produces disorder;
- the predatory outlaw cannot live in stable community.

High-yield takeaways

Key Takeaway

- Gorgias is not a law lecture; it is a lecture on competing definitions of crime and justice.
- Socrates takes a moral and almost religious view of criminality.
- Callicles pushes a radical social-constructionist and anti-moral line.

Study questions answered

1. What are the Five Things? See above.
2. Who are the main speakers? Socrates, Gorgias, Polus, Callicles.

3. What is rhetoric and why does it matter? Persuasive speech; it matters because it shapes law, politics, and public truth.
4. Who is Gorgias in relation to Socrates? A sophist and teacher of rhetoric, unlike Socrates' philosophical method.
5. Who are Polus and Callicles? Successors in the debate: Polus defends power and success, Callicles defends natural domination and anti-conventional ethics.
6. What criminological theories are visible? Social construction, deterrence, rehabilitation, moral versus legal definitions of crime, hegemonic masculinity.
7. Can the speakers be mapped to modern theories? Yes. Polus resembles deterrence and success-centered thinking; Socrates resembles rehabilitation and moral theory; Callicles resembles radical anti-norm naturalism and social-constructionist suspicion of law.

12 Week 10: Introduction to Roman Law

Why this is a very high-yield lecture

Week 10 is one of the most term-heavy lectures in the course. It covers Roman legal history, magistrates, assemblies, jurists, codification, criminal procedure, and the growth of state authority.

Origin story of Roman law

- Rome begins, in legend, in 753 BCE.
- Early Rome is governed by kings.
- Justice in the regal period is largely custom-based.
- Priests initially control written law.
- Family law and religious regulation are early formal areas.
- Patron-client relations act as a parallel social structure for dispute resolution.

Core early developments

- `imperium`: power to command
- `intercessio`: veto or blocking power
- Struggle of the Orders
- tribunes of the plebs
- Twelve Tables, 450 BCE
- `provocatio ad populum`: citizen appeal from magistrate to people

Magistrates and offices you must know

- consuls
- praetors

- `praetor urbanus`
- `praetor peregrinus`
- tribunes of the plebs
- quaestors
- aediles
- censors
- dictator
- prorogation, proconsuls, propraetors

Praetors and legal development

- Praetors are central to the justice system.
- They issue edicts when entering office.
- Law developed from the edicts is called `ius honorarium`.
- This is different from more formal law made by assemblies.

Roman lawyers and jurists

- Early legal specialists are the `pontifices`.
- Roman legal work includes:
- `ad respondendum` - giving legal advice
- `ad agendum` - preparing cases
- `ad cavendum` - drafting documents
- Under Augustus and later emperors, some jurists receive `ius respondendi ex auctoritate principis`.

Jurists and schools you should know

- Marcus Antistius Labeo
- Proculian school
- Masurius Sabinus
- Sabinian school
- Gaius
- Papinian
- Ulpian
- Paulus
- Modestinus

Codification stages

- Law of Citations, 426 CE
- `Codex Theodosianus`, 439 CE
- Justinian's `Corpus Iuris Civilis`, from 528 CE
- `Codex Iustiniani`
- `Novellae`
- `Institutiones`
- `Digest`

Republican constitution and assemblies

- SPQR = Senate and People of Rome.
- Senate: advisory, but hugely authoritative through `senatus consulta`.
- Centuriate assembly:
- wealth-based;
- favors the rich;
- elects consuls, praetors, censors;
- votes on war;
- hears appeals in capital cases.
- Tribal assembly:
- tribe/residence based;
- more egalitarian;
- elects quaestors and curule aediles;
- votes on `leges`.
- Plebeian assembly:
- plebeians only;
- elects tribunes and plebeian aediles;
- votes on `plebiscita`;
- after `lex Hortensia`, plebiscites bind all Rome.

Criminal procedure development

- Early criminal action comes from magistrates with `imperium`.
- Most cases are still private for a long time.
- `quaestio`: ad hoc criminal inquiry/court.

- `quaestio perpetua`: permanent court, beginning with `lex Calpurnia` in 149 BCE.
- Key permanent courts include:
- `repetundae`
- `maiestas`
- `veneficia et sicarii`
- `ambitus`
- `vis`

Why `lex Cornelia de sicariis et veneficis` matters

- 81 BCE
- Establishes a permanent court for murder and poisoning.
- Also criminalizes carrying weapons with intent to kill or steal.
- This is one place where you can argue that murder becomes criminal in Rome in a stronger sense than earlier.

Later empire and class

- `cognitio extraordinaria` eventually takes over much judicial work.
- Urban prefects and other prefects extend enforcement.
- `honestiores` receive better treatment than `humiliores`.
- Augustus adds moral legislation, including adultery courts.

Delicts

- Not quite crimes, not quite torts.
- Core delicts:
- `furtum`
- `rapina`
- `damnum iniuria datum`
- `iniuria`

Study questions answered

1. What are the main features of the origin story of Roman law? Custom, kings, priests, patron-client relations, family and religion, and then the Twelve Tables.
2. Why are the Twelve Tables important? They publicize law, reduce priestly secrecy, and become the iconic beginning of Roman law.

3. Which officials are mainly responsible for legal affairs? Above all the praetors, especially in the Republic.
4. What are the main sources of law? Republic: Twelve Tables, praetorian edicts, `leges`, `plebiscita`, some `senatus consulta`. Empire: increasingly juristic writings and imperial authority.
5. How did legal education develop? From priestly expertise to prestigious juristic schooling, especially under the empire.
6. What are the main stages in codification? Law of Citations, `Codex Theodosianus`, then Justinian's `Corpus Iuris Civilis`.
7. How did legislation work? Senate advised; assemblies voted; magistrates proposed and executed; the emperor later dominates.
8. How did criminal law and trials develop? From magistrate action to ad hoc `quaestiones` to permanent criminal courts.
9. What role did the emperor play? Appointment, legislation, appeals, juristic authority, and eventual codification.

13 Week 11: Criminals and Enemy Combatants - Sallust's Catiline

The Five Things

- Author: Sallust
- Title: `Catiline's War` (`Bellum Catilinae`)
- Date: c. 44-40 BCE
- Location: Rome
- Language: Latin

Why this week matters

This is the course's big Roman case study in how rhetoric, political crisis, and criminality overlap. The central question is whether Catiline is a criminal conspirator or an enemy combatant in a civil war.

Background to the conspiracy

- Catiline is a noble but indebted aristocrat.
- Roman politics is split between `optimates` and `populares`.
- Debt crisis matters.
- Sulla's civil wars and veteran settlements leave instability in Italy, especially Etruria.
- Gaius Manlius becomes crucial in Etruria.

Core chronology of 63-62 BCE

- 64 BCE: Catiline loses bid for the consulship of 63.
- 63 BCE: Catiline loses again for the consulship of 62.
- July 63 BCE: failed election deepens his crisis.
- October 20: anonymous letters reveal conspiracy.
- October 21: Senate passes the `senatus consultum ultimum`.
- October 27: Manlius raises revolt in Etruria.
- early November: Catiline charged with `vis`.
- November 7: attempted assassination of Cicero fails.
- November 8: Cicero delivers the First Catilinarian.
- mid-November: Catiline declared `hostis`.
- December 3: Allobroges produce evidence; conspirators arrested.
- December 5: Senate advises execution of captured conspirators without trial.
- January 62 BCE: Catiline dies in battle.

Why the legal issue is so important

The captured conspirators were Roman citizens. They should still have had `provocatio`. Cicero executes them without trial under cover of the `SCU`, and that choice later contributes to his exile.

Criminological reading of Sallust

Sallust does not present Catiline simply as a villain. He mixes.

- psychological explanation,
- moral corruption,
- class resentment,
- elite decadence,
- relative deprivation,
- rational calculation,
- charisma and heroism.

Direct passages from the reading as quoted in the lecture script

From the Week 11 lecture, quoting Sallust on the urban plebs.

> *"the entire plebs, in its enthusiasm for revolution, approved completely of Catiline's projects"*

Why it matters.

- Catiline is not a lone deviant.
- The crisis has a social base.
- This supports a relative-deprivation reading of the conspiracy.

From the Week 11 lecture, Sallust on Crassus.

> *"everyone cried that the informant was false … while very many of them were beholden to Crassus through personal business"*

Why it matters.

- Status shapes legal truth.
- Roman political justice is shown as selective and class-bound.
- Power can move a man out of the category of suspect altogether.

From the Week 11 lecture, Caesar's proposal.

> *"their money should be confiscated and they themselves held in chains in the municipalities…"*

Why it matters.

- Caesar argues against execution without trial.
- He implicitly proposes long-term detention, which is strikingly unclassical.
- He treats the captives more like criminals than battlefield enemies.

From the Week 11 lecture, Cato's deterrence argument.

> *"when you decide about P. Lentulus and the others, be assured that at the same time you are issuing a decree about Catiline's army"*

Why it matters.

- Cato shifts the frame from prosecution to war.
- He justifies extreme punishment as preemption and deterrence.
- This is the decisive move from "criminal conspiracy" to "enemy threat."

Catiline's contradictory image

Sallust makes Catiline.

- depraved but charismatic,
- criminal but aristocratic,
- socially dangerous but politically comprehensible,
- enemy of Rome but heroic in battle.

At the end he dies bravely, which keeps the category unstable.

Study questions answered

1. What are the Five Things? See above.
2. What social issues lead Catiline toward revolution? Debt, elite faction, dispossession, veteran unrest, and blocked aristocratic ambition.
3. What is happening in Etruria? A revolt base is forming among discontented veterans and displaced farmers under Manlius.
4. Who is Catiline? An indebted aristocrat, `popularis`, failed candidate, and alleged revolutionary leader.
5. Who is Cicero? Consul, orator, and the self-styled savior of the state.
6. How does Sallust explain Catiline's criminality? Through character, corrupted desire, ambition, social crisis, and broader elite decline.
7. How does Catiline explain his own turn to crime? Through grievance, exclusion, and political frustration, which resembles relative deprivation and rational choice.
8. How do Caesar and Cato relate to crime and punishment? Caesar argues restraint and anti-execution precedent; Cato argues deterrence, emergency, and war logic.
9. What is the outcome and lasting issue? The conspiracy is crushed, but Rome is left with the unresolved problem of when citizens become enemies.

14 Week 12: Character and Ciceronian Crime - Pro Caelio

The Five Things

- Author: Marcus Tullius Cicero
- Title: `In Defense of Marcus Caelius` (`Pro Caelio`)
- Date: 56 BCE
- Location: Rome
- Language: Latin

Background to the case

- Caelius is charged with `vis`, political violence.
- Prosecutors: Atratinus, Publius Clodius, and Herennius Balbus.
- Defense: Caelius, Crassus, and Cicero.
- The wider background involves Egyptian politics, Ptolemy XII, the Alexandrian embassy, and the death of Dio.
- Clodia, Caelius' former lover, becomes central to Cicero's version of events.

Why the charge matters

`Vis` is supposed to cover dangerous violence against the state, not private scandal. Cicero's whole strategy is to make the jury think the charge is absurdly overblown.

Cicero's main strategy

He does not focus primarily on reconstructing facts. He.

- turns the trial into comedy;
- turns Caelius into a charming young hero;
- turns Clodia into the scandalous manipulator behind the prosecution;
- makes the case about character instead of action.

Direct passages from the reading

From `Cicero In Defense of Marcus Caelius.pdf`, opening section.

> *"If somebody were here who knew nothing about our laws, our courts, and our customs, he would certainly wonder what crime could be so vicious … this one court should be in session."*

Why it matters.

- Cicero opens by exaggerating the seriousness of the legal frame.
- He then undercuts it by suggesting the charge of `vis` is wildly disproportionate to the real case.
- He prepares the jury to see the prosecution as theatrical overreach.

From `Cicero In Defense of Marcus Caelius.pdf`, on the charges.

> *"There are two charges. One involves gold, the other poison; in both of them one and the same person is concerned."*

Why it matters.

- Cicero narrows the case to Clodia-centered allegations.
- He tries to strip away the public-crime frame and recast the prosecution as a private vendetta.

From `Cicero In Defense of Marcus Caelius.pdf`, on Clodia's narrative.

> *"This whole tale, for instance, belongs to an aging lady poet who has written a lot of comedies - but it has no plot and no ending."*

Why it matters.

- Cicero accuses the prosecution of theatrical fabrication while doing theatrical fabrication himself.
- This is a perfect example of rhetorical projection.

From `Cicero In Defense of Marcus Caelius.pdf`, section 70.

> *"Members of the jury, my case is said and done … This is the law under which this young man Caelius is being prosecuted not to exact punishment on behalf of the commonwealth but on behalf of the sexual perversions of this woman."*

Why it matters.

- Cicero returns to the seriousness of the `vis` law.
- He argues that the state is being misused for private erotic revenge.
- He fuses legal argument, misogyny, and comic performance.

From the Week 12 lecture script, quoting Cicero's description of Catiline.

> *"he could alter his character and direct it for the occasion, twisting and bending it in all directions"*

Why it matters.

- Cicero uses Catiline's adaptability to excuse Caelius' youthful association with him.
- This shows how flexible courtroom rhetoric can be: last week's monster becomes this week's useful comparison.

What the lecture wants you to notice

Key Takeaway

- Cicero makes a public-crime case look like sex comedy.
- He uses family, class, sexuality, and gender performance to assign criminality.
- He relies on what looks very much like positivist thinking: good families produce good citizens, corrupt households produce corrupt actors.
- The case also reveals a larger Roman shift toward treating unauthorized violence as violence against the state.

Riggsby's contribution

The lecture uses Andrew Riggsby to argue.

- Cicero replaces a judicial frame with a theatrical one.
- Metaphor changes what outcomes feel "natural."
- The law on `vis` helps show the Roman state's growing monopoly on legitimate force.

Study questions answered

1. What are the Five Things? See above.

2. What are the background issues of the trial? Egyptian diplomacy, the death of Dio, and Roman political instability.
3. Who is on the prosecution team? Atratinus, Clodius, and Herennius Balbus.
4. Who is on the defense team? Caelius, Crassus, and Cicero.
5. Who is Cicero in this trial? Final defense speaker and master rhetorician.
6. How does Cicero characterize Caelius? As a talented, basically good young man with ordinary youthful excesses.
7. Who is Clodia and what role does she play? Ex-lover, socialite, and in Cicero's telling, the manipulative force behind the prosecution.
8. What is the relationship between Caelius and Catiline? Caelius was associated with Catiline's circle, and Cicero must neutralize that fact.
9. What is Cicero's legal strategy and what theory does it resemble? He substitutes character for fact, which resembles positivist and stereotype-based thinking.
10. How are elements of this trial still visible today? Media spectacle, sexual double standards, celebrity scandal, character assassination, and metaphor-driven politics.

15 Cross-Course Comparison Table

Topic	Greek material	Roman material	Why it matters
Public/private distinction	Homicide can remain private	Many violent matters remain outside strong public prosecution for a long time	Modern criminal law is not universal
Self-help	Draco regulates it	Patron-client structure and weak policing preserve it	Ancient states do not fully monopolize force
Rhetoric	Lysias and Gorgias	Sallust and Cicero	Persuasion constructs criminality
Punishment	exile, blood vengeance, civic adjudication	exile, fines, execution, later stronger criminal courts	Prison is not the default ancient answer
Character versus act	seducer, adulterer, tyrant	Catiline, Clodia, Caelius	The person often matters more than the legal category
Insider versus outsider	household polluter, tyrant, seducer	citizen conspirator, aristocrat, enemy combatant	The threat often comes from within

16 High-Yield Terms to Memorize

Greek

- `nomos`
- `dike`
- `graphe`
- lethal self-help
- Areopagus
- Socrates
- rhetoric
- `physis`
- `nomos` as convention

Roman

- `imperium`
- `intercessio`
- `provocatio`
- Twelve Tables
- `praetor urbanus`
- `praetor peregrinus`
- `ius honorarium`
- `senatus consultum`
- `senatus consultum ultimum`
- `quaestio`
- `quaestio perpetua`
- `repetundae`
- `maiestas`
- `ambitus`
- `vis`
- `hostis`
- `ius respondendi`
- `Corpus Iuris Civilis`
- `honestiores`
- `humiliores`

- delict

17 Final Exam Focus: What to prioritize in the last review pass

Exam Callout

Use this weighting for the last pass before the exam: master Roman legal structure first, then Catiline and `Pro Caelio`, then use the Greek units to define terms and build comparison answers.

Highest priority

Key Takeaway

- Week 10 Roman law terms, institutions, assemblies, procedures, and codification
- Week 11 Catiline chronology, `SCU`, `hostis`, Caesar versus Cato
- Week 12 `Pro Caelio`, `vis`, Cicero's theatrical strategy, Clodia, and character-based criminality

Second priority

Key Takeaway

- Week 7 Draco's law and Lysias' defense strategy
- Week 8 Socrates versus Polus and Callicles
- Week 6 criminology definitions and theories

Foundation priority

Key Takeaway

- Week 1 public/private distinction, exile versus prison, Foucault
- Week 2 chronology
- Week 3 Greek-law vocabulary
- Week 4 `Oresteia` as movement from vengeance toward civic justice

18 Final Checklist

- Can you explain why murder is not simply a "crime" in the same way in classical Athens?
- Can you explain the difference between a homicide exception and a death penalty?
- Can you define `vis` and explain why it matters in both Week 11 and Week 12?
- Can you explain why the Twelve Tables matter for Roman legal history?

- Can you explain the difference between `leges`, `plebiscita`, praetorian edicts, and juristic writings?
- Can you explain why Caesar and Cato disagree about the Catilinarian conspirators?
- Can you explain how Cicero turns a criminal prosecution into comedy?
- Can you connect ancient material to modern criminological theories without claiming the two worlds are identical?

If you can answer those clearly, you are covering the spine of the course.